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Robert E. Pastor, SBN 021963
MONTOYA, LUCERO & PASTOR, P.A.
3200 North Central Avenue, Suite 2550
Phoenix, Arizona 85012
Phone: (602) 279-8969
Fax: (602) 256-6667
pastor@mlpattorneys.com

Michael S. Daoudi, SBN
Law Offices of Michael S. Daoudi, PC
346 Park Street, Suite 120
Birmingham, Michigan 48009
(248) 220-4377
msd@msd4law.com

Attorneys for Plaintiff

IN THE SUPERIOR COURT OF THE STATE OF ARIZONA
IN AND FOR THE COUNTY OF MARICOPA

JOHN CD DOE, a single man,

Plaintiff,

v.

BIG BROTHERS BIG SISTERS OF AMERICA, a District of Columbia, non-profit corporation; BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA; an Arizona corporation; JOHN DOE 1-100; JANE DOE 1-100; and BLACK & WHITE CORPORATIONS 1-100,

Defendants.

Case No.: **CV2020-014920**

Plaintiff, for his complaint, states and alleges the following:

JURISDICTION

1. Plaintiff, John CD Doe, is a resident of Maricopa County, Arizona. The acts, events, and or omissions occurred in Maricopa County, Arizona. This cause of action arises out of acts, events or omissions that occurred in Maricopa County, Arizona.
2. Defendant Big Brothers Big Sisters of America (BBBS America) is a District of Columbia corporation, authorized and doing business in Maricopa County,

Arizona. Defendant Big Brothers Big Sisters of America was incorporated on September 2, 1958. Big Brothers Big Sisters of America's principle place of business is located at 2502 N. Rocky Point Drive, Suite 550 located in Tampa, Florida. Big Brothers Big Sisters of America is or was formerly known as Big Brothers of America. Big Brothers Big Sisters of America is also the successor in interest of Big Brothers of America.

3. Defendant Big Brothers Big Sisters of America was incorporated for the purpose of:

   a. providing children facing adversity with strong and enduring professional relationships that change lives for the better, forever;
   b. Aid in the formation of the new Big Sisters organizations throughout the world;
   c. Establish guidelines and act as liason for Big Sisters organizations throughout the world;
   d. Any other non-profit purposes provided in the by-laws.

4. Defendant Big Brothers Big Sisters of America, acting through employees, representatives, affiliates, volunteers, members and agents of any kind caused acts, events, or omissions to occur in Maricopa County, Arizona out of which these claims arise.

5. Defendant Big Brothers Big Sisters of Central Arizona is an Arizona corporation and has its principle place of business in Phoenix, Maricopa County, Arizona. Defendant Big Brothers Big Sisters of Central Arizona is also known as, formerly known as and or doing business as Valley Big Brothers and or Valley Big Brothers Big Sisters. Defendant Big Brothers Big Sisters of Central Arizona is also the successor in interest of Valley Big Brothers and or Valley Big Brothers Big Sisters. Defendant Big Brothers Big Sisters of Central Arizona is authorized and doing business in Maricopa

County, Arizona.

6. Defendant Big Brothers Big Sisters of Central Arizona was incorporated for the following purpose:

   a. To provide open and effective channels of communication among the Member Agencies of the association;
   b. Building awareness about and advocating for issues effecting youth;
   c. Develop and implement statewide marketing efforts to promote the mentoring programs of Member Agencies;
   d. Pursue Statewide funding efforts to assure the financial sustainability of all Member Agencies;
   e. Create and support one-to-one mentoring relationships that ignite the power and promise of youth.

7. Defendant Big Brothers Big Sisters of Central Arizona, acting through employees, representatives, affiliates, volunteers, members and agents of any kind caused acts, events, or omissions to occur in Maricopa County, Arizona out of which these claims arise.

8. Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona had a special relationship with the youth who joined Defendants' programs, including Plaintiff.

9. Defendant Big Brother Big Sisters of America and or Big Brothers Big Sisters of Central Arizona work involves one-on-one mentoring programs in which BBBSA / BBBS AZ match "Bigs" in a one-on-one relationship with "littles."

10. Italo Arbulu is a resident of Monterey County, California. At all times alleged, Italo Arbulu was an agent, volunteer, representative, mentor, and or "Big", acting within the course and scope of his employment, agency, actual or apparent authority with Defendants Big Brothers Big Sisters of America and or

Big Brothers Big Sisters of Central Arizona. Arbulu used his position of trust and authority, given to him by and through his agency relationship with Defendants to sexually abuse Plaintiff.

11. Italo Arbulu is a convicted sex offender having been convicted of sexually abusing five boys under the age of 14. Italo Arbulu is serving 180 years in prison.

12. Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona working individually and in concert, assigned, placed, paired, partnered, introduced, and or matched Italo Arbulu with Plaintiff John CD Doe.

13. At all times relevant to this Complaint, Italo Arbulu acting within the course and scope of his employment, agency, actual or apparent authority with Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona caused acts, events, and or omissions to occur in Maricopa County, Arizona out of which these claims arise.

14. Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona authorized, approved, granted, and or authorized Italo Arbulu to serve in a position of trust and authority where Arbulu was granted access to Plaintiff and permitted to work with children like Plaintiff as an integral part of Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona work, purpose and or mission.

15. Plaintiff relied on Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona to provide education, training, supervision, and that degree of care and skill required to ensure that the volunteers, members, staff, Bigs, employees and agents of any kind were fit to work with vulnerable youth like Plaintiff to help Defendants achieve their work, purpose and or missions.

16. Plaintiff is informed and believes, and on that basis alleges, that at all times

mentioned herein, there existed a unity of interest and ownership among Defendants and each of them, such that any individuality and separateness between Defendants, and each of them, ceased to exist. Defendants, and each of them, were the successors-in-interest and or alter egos of the other Defendants, and each of them, in that they purchased, controlled, dominated and operated each other without any separate identity, observation of formalities, or other manner of division. At all times alleged, Defendants acted in concert with their co-defendants and others to commit the wrongful acts. To continue maintaining the façade of a separate and individual existence between and among Defendants, and each of them, would serve to perpetuate a fraud and an injustice.

17. Defendants JOHN DOE 1-100, JANE DOE 1-100, and BLACK AND WHITE CORPORATIONS 1-100, are fictitious names designating an individual or individuals or legal entities not yet identified who have acted in concert with the named Defendants either as principals, agents, co-participants, or co-conspirators whose true names Plaintiff may insert when identified.

18. Plaintiff is informed and believes, and on that basis alleges, that at all times alleged herein, Defendants and each of them and JOHN DOES 1-100, JANE DOES 1-100, and BLACK and WHITE CORPORATIONS 1-100, inclusive, were the agents, representatives and or employees of each and every other Defendant. In doing the things hereinafter alleged, Defendants, and each of them, JOHN DOES 1-100, JANE DOES 1-100, and BLACK and WHITE CORPORATIONS 1-100, inclusive, were acting within the course and scope of said alternative personality, capacity, indemnity, agency, representation and or employment and were within their actual or apparent authority.

GENERAL ALLEGATIONS

19. Plaintiff incorporates all other paragraphs as if fully set forth herein.

20. On or before 1977, Defendant Big Brothers Big Sisters of America fka Big

Brothers of America created a National Clearing House for Information on Sexual Child Abuse. Defendant Big Brothers Big Sisters of America's national clearing house required each agency and or affiliated organization to send a written report to Defendant Big Brothers Big Sisters of America's national headquarters to:

a. Determine the incident level;
b. Analyze the patterns of pedophilic behaviors;
c. develop National Policy; and
d. provide guidance on volunteer selection and predictability.

21. In approximately 1981, Defendant Big Brothers Big Sisters of America solicited, developed, and or approved an insurance program designed specifically for affiliated agencies and or organizations, including Defendant Big Brother Big Sisters of Central Arizona, to cover child sexual abuse in Defendants' programs.

22. In approximately 1982, Defendant Big Brothers Big Sisters of America published a report entitled "Child Sexual Abuse." Defendants relied on experts in the fields of mental health, psychology, medicine, and social work among others to assist Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona, executive directors, staff, parents, board members, volunteers and the community, in the detection, selection, supervision and investigation procedures of alleged abusers. The report recognized that Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona knew that the Big Brothers Big Sisters programs attracts child sexual abusers. Defendants acknowledged the Big Brother Big Sister programs attracts sexual predators:

> Generally, it is agreed that child molestation type offenses do not involve physical force for the commission of the

> offense. In fact the reverse is more often true. The offender usually entices through indoctrination the child into the sexual behavior through either persuasion or entrapment in which the child is caused to feel indebted or obligated. Since we deal with boys and girls who may have no adequate role model or parent figure in their lives, it is very characteristic to shower the child with new found approval, affection and attention with the new relationship. Money, gifts and new, exciting adventures for the child with this new friend all could be ways to pressure the child into approval for otherwise reluctant behavior. Clearly our clients are a 'high risk' for the potential abuser. The pedophilic applicant will generally try to encourage overnight visits, weekend stays at his home, or trips which involve travel very early in the relationship. The case worker should be attuned to this type of behavior and I generally recommend that staff approval be obtained before home visits and travel with the volunteer are approved.

Child Sexual Abuse, Big Brothers Big Sisters of America (1982).

23. An evaluation and report by the American Bar Association on child sexual abuse allegations within Defendants' programs revealed:

    a. Between 1982 and 1991 there were 304 reports of child sexual abuse in Defendants' programs;

    b. Big brothers are more likely to sexually abuse children;

    c. Little brothers were more likely to be sexually abused by their Big Brothers;

    d. Child sexual abuse was more likely to occur in the big brother's home or residence.

24. Defendant Big Brothers Big Sisters of America manages, trains, supervises, and or controls Defendant Big Brothers Big Sisters of Central Arizona through an affiliate agreement. Under the agreements, Defendant Big Brothers Big Sisters of Central Arizona must comply with the standards set by Defendant Big Brothers Big Sisters of America.

25. Defendant Big Brothers Big Sisters of America performs reviews and

evaluations of local affiliated agencies including Big Brothers Big Sisters of Central Arizona.

26. Defendant Big Brothers Big Sisters of America has the power, authority, and discretion to terminate an affiliate agency or organization, including Defendant Big Brothers Big Sisters of Central Arizona, that does not comply with BBBSA standards, policies, procedures, rules, regulations and or directives.

27. Defendant Big Brothers Big Sisters of America developed and implemented standards, policies, procedures, rules, regulations, and or directives that affiliated agencies or organizations were required to follow, that were designed to prevent child sexual abuse with Defendants' mentoring programs.

28. Defendant Big Brothers Big Sisters of America developed and implemented training program(s) for local agencies or organizations, including Defendant Big Brothers Big Sisters of Central Arizona.

29. Defendant Big Brothers Big Sisters of America together with affiliated agencies and or organizations, established standards for screening volunteers.

30. Neither Defendant Big Brothers Big Sisters of America nor Defendant Big Brothers Big Sisters of Central Arizona disclosed and or warned participants and their families that pedophiles would seek out Defendants' volunteer programs. Defendants did not disclose and or warn participants and their families of the known incidents of child sexual abuse and known patterns of grooming and child sexual abuse even though Defendants' identified and acknowledge the risk of child sexual abuse by volunteers in Defendants internal documents and records.

31. Plaintiff was raised by a single mother. Plaintiff's mother enrolled Plaintiff in Defendants' one-on-one mentoring program.

32. Italo Arbulu applied to Defendants mentoring program to be a "Big." Defendants approved Italo Arbulu's application allowing him to have a one-on-one relationship with participants in Defendants' program, including

Plaintiff.

33. In June or July 1983, Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona matched Italo Arbulu with Plaintiff John CD Doe. Italo Arbulu used his position of trust and authority, given to him by Defendants, to develop a one-on-one relationship with Plaintiff that he used to groom and sexually abuse Plaintiff.

34. Italo Arbulu had over-night visits with Plaintiff in violation of Defendants' standards, policies, procedures, directives and a reasonable standard of care.

35. Plaintiff told an agent, employee, representative of Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona that

- Plaintiff did not want to be matched with Arbulu;
- Plaintiff and Arbulu had different interests;
- Plaintiff did not recommend Defendants match Arbulu with another child because Arbulu touched Plaintiff's penis.

36. In July 1983, when Plaintiff was nine years old, he reported to Phoenix Police that after Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona assigned Italo Arbulu to be his 'Big Brother' Arbulu began touching his penis. Arbulu showered Plaintiff with gifts, attention and his time. While Plaintiff's mother was in the hospital, and on other occasions, Arbulu was allowed to spend the night with Plaintiff. Arbulu used his position of trust and authority, given to him by Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona to sexually abuse Plaintiff. The acts of sexual abuse included, but are not limited to, fondling, masturbation and or oral sexual contact with Plaintiff's penis.

37. When Plaintiff was under the age of fifteen years old, Italo Arbulu, engaged in unpermitted sexual contact with Plaintiff, including, but not limited to sexual contact and or oral sexual contact as defined by Arizona Revised Statutes § 13-

1401 and or § 13-1405.

38. Plaintiff's relationship to Defendants, as a vulnerable child and participant in Defendants' activities and or programs, was one in which Plaintiff was subject to the ongoing influence of Defendants.

COUNT I
SEXUAL ASSAULT / SEXUAL ABUSE / SEXUAL CONDUCT WITH A MINOR
(A.R.S. § 13-1405 and the common law)

39. Plaintiff incorporates all other paragraphs as if fully set forth herein.

40. Italo Arbulu intentionally, knowingly, recklessly, or negligently engaged in sexual contact, oral sexual contact, and or sexual intercourse with Plaintiff.

41. Italo Arbulu intentionally, knowingly, recklessly, or negligently engaged in sexual contact, oral sexual contact, and sexual intercourse without his consent and when he was a minor incapable of consenting to such sexual contact.

42. Italo Arbulu was an agent, volunteer, representative, mentor, and or "Big", acting within the course and scope of his employment, agency, actual or apparent authority with Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona. Arbulu used his position of trust and authority, given to him by and through his agency relationship with Defendants to sexually abuse Plaintiff.

43. As a direct and proximate cause of the wrongful acts Plaintiff suffered and will continue to suffer in the future physical and emotional injury including, but not limited to great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

44. The allegations set forth in this Count constitute traditional negligence and

negligence per se for violation of A.R.S. § 13-3623 and other relevant statutes and laws, including the common law, enacted for the protection of a specific class of persons of which Plaintiff is a member.

COUNT II
NEGLIGENCE AGAINST DEFENDANTS
BIG BROTHERS BIG SISTERS OF AMERICA & BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA

45. Plaintiff incorporates all consistent paragraphs of this Complaint as if fully set forth under this count.

46. Each Defendant owed Plaintiff a duty of reasonable care to protect Plaintiff from unreasonable risk of harm.

47. Each Defendant owed Plaintiff a duty of care because each Defendant had a special relationship with Plaintiff.

48. Defendants also had a duty arising from the special relationship that existed with Plaintiff, Plaintiff's parent, and other parents of young, innocent, vulnerable children to properly train and supervise its volunteers, representatives, Bigs, mentors, employees and agents of any kind. This special relationship arose because of the high risk of vulnerability of the children entrusted to their care. As a result of this high risk of vulnerability and risk of sexual abuse in such a special relationship, Defendants had a duty to establish measures of protection not necessary for persons who are older and better able to safeguard themselves.

49. Each Defendant owed Plaintiff a duty to protect Plaintiff from harm and or an unreasonable risk of harm because each Defendant also had a special relationship with Italo Arbulu.

50. Defendants owed Plaintiff a duty of reasonable care because they solicited youth and parents for participation in their youth programs; encouraged youth

and parents to have the youth participate in their programs; undertook custody of minor children, including Plaintiff; promoted their facilities and programs as being safe for children; held their agents, including Italo Arbulu, out as safe to work with children; encouraged parents and children to spend time with their agents; and/or encouraged their agents, including Italo Arbulu, to spend time with, interact with, and recruit children, including Plaintiff.

51. By accepting custody of the minor Plaintiff, Defendants established an *in loco parentis* relationship with Plaintiff and in so doing, owed Plaintiff a duty to protect Plaintiff from injury. Further, Defendants entered into a fiduciary relationship with Plaintiff by undertaking the custody, supervision of, and/or care of the minor Plaintiff. As a result of Plaintiff being a minor, and by Defendants undertaking the care and guidance of the Plaintiff, Defendants also held a position of empowerment over Plaintiff. Further, Defendants, by holding themselves out as being able to provide a safe environment for children, solicited and/or accepted this position of empowerment. Defendants, through its employees, exploited this power over Plaintiff and, thereby, put the minor Plaintiff at risk for sexual abuse.

52. By establishing and/or operating Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona and accepting the minor Plaintiff as a participant in their programs, holding their facilities and programs out to be a safe environment for Plaintiff, accepting custody of the minor Plaintiff *in loco parentis*, and by establishing a fiduciary relationship with Plaintiff, Defendants entered into an express and/or implied duty to properly supervise Plaintiff and provide a reasonably safe environment for children, who participated in their programs. Defendants owed Plaintiff a duty to properly supervise Plaintiff to prevent harm from foreseeable dangers. Defendants had the duty to exercise the same degree of care over minors under their control as a reasonably prudent person would have exercised under similar

circumstances.

53. By establishing and operating Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona which offered educational programs and or mentorship programs to children and by accepting the enrollment and participation of the minor Plaintiff as a participant in those programs, Defendants owed Plaintiff a duty to properly supervise Plaintiff to prevent harm from generally foreseeable dangers.

54. Each Defendant owed Plaintiff a duty to protect Plaintiff from harm because Defendants invited Plaintiff onto their property and Arbulu posed a dangerous condition on Defendants' property.

55. Each Defendant breached its duties to Plaintiff. Defendants failed to use ordinary care in determining whether their facilities were safe and/or determining whether they had sufficient information to represent their facilities as safe. Defendants' breach of their duties include, but are not limited to: failure to protect Plaintiff from a known danger, failure to have sufficient policies and procedures in place to prevent child sex abuse, failure to properly implement policies and procedures to prevent child sex abuse, failure to take reasonable measures to ensure that policies and procedures to prevent child sex abuse were working, failure to adequately inform families and children of the risks of child sex abuse, failure to investigate risks of child molestation, failure to properly train the employees at institutions and programs within Defendants' geographical confines, failure to train the minors within Defendants' geographical confines about the dangers of sexual abuse by clergy, failure to have any outside agency test their safety procedures, failure to protect the children in their programs from child sex abuse, failure to adhere to the applicable standard of care for child safety, failure to investigate the amount and type of information necessary to represent the institutions, programs, leaders and people as safe, failure to train their employees properly

to identify signs of child molestation by fellow employees, failure by relying upon mental health professionals, and/or failure by relying on people who claimed that they could treat child molesters.

56. Defendants also breached their duty to Plaintiff by failing to warn Plaintiff and Plaintiff's family of the risk that Arbulu posed and the risks of child sexual abuse in Defendants' organizations. They also failed to warn them about any of the knowledge that Defendants had about child sexual abuse in youth-serving organizations, including Defendants.

57. Defendants breached their duties to Plaintiff by failing to use reasonable care. Defendants' failures include, but are not limited to, failing to properly supervise Italo Arbulu failing to properly supervise Plaintiff, and failing to protect Plaintiff from a known danger.

58. Defendants additionally violated a legal duty by failing to report and or warn known and/or suspected abuse of children by Italo Arbulu and/or its other agents to the police, other law enforcement, participants and their parents.

59. Defendants knew that individuals seeking sexual contact with children would seek out Defendants' programs as a means to gain access to children to further their deviant sexual desires toward children.

60. Defendants knew or should have known that Italo Arbulu was a danger to children before Italo Arbulu sexually abused Plaintiff.

61. Prior to the sexual abuse of Plaintiff, Defendants learned or should have learned that Arbulu was not fit to work with children. Defendants, by and through their agents, servants and/or employees, became aware, or should have become aware of Arbulu's propensity to commit sexual abuse and of the risk to Plaintiff's safety. At the very least, Defendants knew or should have known that they did not have sufficient information about whether or not their leaders and people working at Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona were safe.

62. Defendants knew or should have known that there was a risk of child sex abuse for children participating in Defendants' programs and activities. At the very least, Defendants knew or should have known that they did not have sufficient information about whether or not there was a risk of child sex abuse for children participating in Defendants programs and activities.

63. Defendants knew or should have known that Defendants had numerous agents, volunteers, members, Bigs, mentor, employees and or agents of any kind who had sexually molested children. Defendants knew or should have known that child molesters have a high rate of recidivism. They knew or should have known that there was a specific danger of child sex abuse for children participating in their youth programs.

64. However, despite this knowledge, Defendants negligently deemed that Italo Arbulu was fit to work with children; and/or that any previous suitability problems Italo Arbulu had were fixed and cured; and/or that Italo Arbulu would not sexually molest children; and/or that Italo Arbulu would not injure children.

65. Defendants' actions created a foreseeable risk of harm to Plaintiff. As a vulnerable child participating in the programs and activities Defendants offered to minors, Plaintiff was a foreseeable victim. Additionally, as a vulnerable child who Arbulu had access to through Defendants' authorization, facilities and or programs, Plaintiff was a foreseeable victim.

66. As a direct and proximate cause of Defendants' wrongful acts Plaintiff suffered and will continue to suffer in the future physical and emotional injury including, but not limited to great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT III
NEGLIGENT TRAINING AND SUPERVISION OF EMPLOYEES AGAINST DEFENDANTS BIG BROTHERS BIG SISTERS OF AMERICA & BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA

67. Plaintiff incorporates all consistent paragraphs of this Complaint as if fully set forth under this count.

68. At all times material, Italo Arbulu was employed, authorized, commissioned, permitted, and or approved by Defendants and was under each Defendants' direct supervision, employ, and or control when he committed the wrongful acts alleged herein. Italo Arbulu engaged in the wrongful conduct while acting in the course and scope of his employment and or agency with Defendants and/or accomplished the sexual abuse by virtue of the authority and or position granted to him by Defendants.

69. Defendants had a duty, arising from their employment and or agency relationship with Italo Arbulu, to ensure that he did not sexually molest children.

70. Further, Defendants owed a duty to train and educate employees, agents, volunteers, mentors, members, Bigs and administrators and establish adequate and effective policies and procedures calculated to detect, prevent, and address inappropriate behavior and conduct between Defendants agents and children.

71. The abuse complained of herein occurred on Defendants' property and/or with the use of their chattels, and or agents / volunteers.

72. Defendants breached their duties to Plaintiff by actively maintaining, authorizing, permitting and or employing Italo Arbulu in a position of power and authority through which Italo Arbulu had access to children, including Plaintiff, and power and control over children, including Plaintiff.

73. Defendants were negligent in the training, supervision, and instruction of their

employees. Defendants failed to timely and properly educate, train, supervise, and/or monitor their agents or employees with regard to policies and procedures that should be followed when sexual abuse of a child is suspected or observed. Defendants were additionally negligent in failing to supervise, monitor, chaperone, and/or investigate Italo Arbulu and/or in failing to create, institute, and/or enforce rules, policies, procedures, and/or regulations to prevent Italo Arbulu's sexual abuse of Plaintiff. In failing to properly supervise Italo Arbulu, and in failing to establish such training procedures for employees, voluneers, agents, Bigs, Littles and or administrators, Defendants failed to exercise the degree of care that a reasonably prudent person would have exercised under similar circumstances.

74. As a direct and proximate cause of Defendants' wrongful acts Plaintiff suffered and will continue to suffer in the future physical and emotional injury including, but not limited to great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT IV
NEGLIGENT RETENTION OF EMPLOYEES / AGENTS
AGAINST DEFENDANTS BIG BROTHERS BIG SISTERS OF AMERICA & BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA

75. Plaintiff incorporates all consistent paragraphs of this Complaint as if fully set forth under this count.

76. At all times material, Italo Arbulu was employed and or authorized by Defendants and was under each Defendant's direct supervision, employ, and control when he committed the wrongful acts alleged herein.

77. Defendants negligently retained Italo Arbulu with knowledge of Italo Arbulu's

propensity for the type of behavior which resulted in Plaintiff's injuries in this action. Defendants failed to investigate Italo Arbulu's past and/or current history of sexual abuse and, through the exercise of reasonable diligence, should have known of Italo Arbulu's propensity for child sexual abuse. Defendants should have made an appropriate investigation of Italo Arbulu and failed to do so. An appropriate investigation would have revealed the unsuitability of Italo Arbulu for continued employment and it was unreasonable for Defendants to retain Italo Arbulu in light of the information they knew or should have known.

78. Defendants negligently retained Italo Arbulu in a position where he had access to children and could foreseeably cause harm which Plaintiff would not have been subjected to had Defendants taken reasonable care.

79. In failing to timely remove Italo Arbulu from working with children or terminate the employment and or agency relationship with Italo Arbulu, Defendants failed to exercise the degree of care that a reasonably prudent person would have exercised under similar circumstances.

80. As a direct and proximate cause of Defendants' wrongful acts Plaintiff suffered and will continue to suffer in the future physical and emotional injury including, but not limited to great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT V
BREACH OF FIDUCIARY DUTY
(All Defendants)

81. Plaintiff incorporates all other paragraphs as if fully set forth herein.

82. Defendants' relationship with Plaintiff was a special relationship; one of

friend, mentor, guide, protector and or fiduciary. As a fiduciary to Plaintiff, Defendants owed a duty to investigate, obtain, warn and disclose sexual misconduct, sexual assault, sexual abuse, molestation, sexual propensities, and other inappropriate acts of its agents, employees and or volunteers, including Italo Arbulu. As fiduciary, Defendants owed Plaintiff a duty to work solely for his benefit.

83. Defendants breached their fiduciary duties owed to Plaintiff.

84. As a direct and proximate cause of Defendants breach Plaintiff suffered and will continue to suffer in the future physical and emotional injury, including but not limited to, great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT VI
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(All Defendants)

85. Plaintiff incorporates all other paragraphs as if fully set forth herein.

86. Defendants' wrongful conduct, including sexual abuse, conspiracy to conceal sexual abuse, failure to report Italo Arbulu's sexual abuse of children, acquiescence, affirmance, and ratification of Italo Arbulu's sexual abuse exceeded the bounds of decency and were extreme and outrageous causing Plaintiff to suffer severe emotional and psychological distress.

87. As a direct and proximate cause of Defendants' wrongful conduct Plaintiff suffered and will continue to suffer in the future physical and emotional injury, including but not limited to great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and

affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT VII
ENDANGERMENT
(All Defendants)

88. Plaintiff incorporates all other paragraphs as if fully set forth herein.

89. Defendants have a duty to protect children from foreseeable and unjustifiable risks of harm.

90. In approximately or before 1983, Defendants knew or should have known that the children in Defendants' programs were high risk for sexual abuse. Defendants also knew or should have known that applicants with a propensity, history and desire to sexually abuse children are attracted to Defendants' programs and opportunities because Defendants' programs offer sexual predators access to children and positions of trust and authority.

91. Defendants knew, should have known and or were deliberately ignorant that Italo Arbulu posed a significant risk of injury to children, including Plaintiff.

92. Defendants knew, should have known and or were deliberately ignorant that Italo Arbulu posed a substantial risk of significant physical and psychological injury and or harm to children, including Plaintiff.

93. Defendants, individually and in concert with the each other, negligently, recklessly, or intentionally endangered the health and well-being of children, including Plaintiff by exposing them to child sexual abusers like Italo Arbulu who was a substantial risk of significant physical and mental injury to young children including Plaintiff.

94. As a direct and proximate cause of Defendants' negligent, reckless, and or intentional endangerment, Plaintiff suffered and will continue to suffer in the future great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of

enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT VIII
CHILD ABUSE
(A.R.S. § 13-3623 and the common law)
(All Defendants)

95. Plaintiff incorporates all other paragraphs as if fully set forth herein.

96. Italo Arbulu had the care and custody of Plaintiff both because he was a parishioner and student under the control and authority of Italo Arbulu, given to him by Defendants.

97. Defendants had the care and custody of Plaintiff both because they Assigned, matched, authorized, approved and/or permitted Italo Arbulu to serve as their agent, representative, volunteer, mentor and or Big and because of their pattern, practice, custom, and tradition of training, educating and or mentoring children through Defendants' programs. Defendants had the care and custody of Plaintiff through traditional agency law.

98. Italo Arbulu was an agent, volunteer, representative, mentor, and or "Big", acting within the course and scope of his employment, agency, actual or apparent authority with Defendants Big Brothers Big Sisters of America and or Big Brothers Big Sisters of Central Arizona. Arbulu used his position of trust and authority, given to him by and through his agency relationship with Defendants to sexually abuse Plaintiff.

99. Under circumstances likely to produce serious and significant physical and psychological injury and while Plaintiff was under the care and custody of all Defendants, Defendants and each of them negligently, recklessly, and or intentionally caused, permitted, allowed, and/or established patterns, practices, policies, procedures, customs, and traditions that placed Plaintiff in a situation in which sexual abuse was likely to occur, thereby placing Plaintiff's person,

physical health, and mental/emotional health in danger; to wit, Defendants knew child sexual abusers would seek out their programs to gain access to children.

100. Defendants, and each of them, intentionally, recklessly and or negligently endangered and abused Plaintiff.

101. As a direct and proximate cause of Defendants' sexual abuse of Plaintiff, Plaintiff suffered and will continue to suffer in the future great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

COUNT IX
ASSAULT
(A.R.S. §§ 13-1204, 13-1203, and the common law)
(All Defendants)

102. Plaintiff incorporates all other paragraphs as if fully set forth herein.

103. At all times relevant to this complaint, Italo Arbulu was over the age of 18 and Plaintiff was under the age of 15.

104. Italo Arbulu, as an agent, representative, mentor, Big and or employee of Defendants acting within the course and scope of his actual or apparent authority, intentionally, knowingly and or recklessly caused serious physical and mental/emotional injury to Plaintiff.

105. Italo Arbulu, as an agent, representative, mentor, Big and or employee of Defendants acting within the course and scope of his actual or apparent authority intentionally, knowingly, recklessly and or negligently placed Plaintiff in reasonable apprehension of imminent physical injury.

106. Italo Arbulu, as an agent, representative, mentor, Big or employee of Defendants acting within the course and scope of his actual or apparent

authority intentionally, knowingly, recklessly and/or negligently touched Plaintiff with the intent to injure, insult or provoke.

107. The allegations set forth in this Count constitute negligence and negligence per se for violation of A.R.S. §§ 13-1204, 13-1203 and other relevant statutes and laws, including the common law, enacted for the protection of a specific class of persons of which Plaintiff is a member.

108. As a direct and proximate cause of Defendants' abuse of Plaintiff, Plaintiff suffered and will continue to suffer in the future great pain of mind and body, shock, emotional distress, embarrassment, loss of self-esteem, disgrace, humiliation, anger, rage, frustration, loss of enjoyment of life, loss of consortium, loss of love and affection, sexual dysfunction, past and future medical expenses for psychological treatment, therapy, and counseling.

PRAYER FOR RELIEF

1. Plaintiff requests judgment in favor of Plaintiff and against Defendants as follows to:

   a. For Plaintiff's general and special damages in an amount to be proven at trial by jury;

   b. For Plaintiff's incurred costs together with interest at the highest lawful rate on the total amount of all sums awarded from the date of judgment until paid;

   c. For the fair and reasonable monetary value of Plaintiff's past, present, and future pain and suffering in an amount to be proven at trial by jury;

   d. For the medical expenses incurred up to the date of trial and any additional expenses necessary for future medical care and treatment;

   e. For punitive damages or exemplary damages to be set by a jury in an amount sufficient to punish Defendants for their outrageous

conduct and to make an example out of them so that others do not engage in similar conduct in the future;

f. For such other and further relief as this Court may deem just and proper.

DATED this 18th day of November, 2020.

MONTOYA, LUCERO & PASTOR, P.A.

By /s/ Robert E. Pastor
Robert E. Pastor
Attorneys for Plaintiff